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Superior Court of California,
County of Los Angeles
2/18/2025 6:57 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By G. Megerian, Deputy Clerk

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SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
LIMITED CIVIL JURISDICTION

Cavalry SPV I, LLC,

Plaintiff,

vs.

AGUSTIN GUEVARA, an individual, et al.,

Defendant.

Case No. 24CHLC00298

**DECLARATION IN SUPPORT OF
APPLICATION FOR ENTRY OF
DEFAULT JUDGMENT PURSUANT TO
CIVIL CODE § 1788.60(a)**

I, the undersigned, declare as follows:

1. I am an employee of Cavalry Portfolio Services, LLC (hereinafter, "CPS"), which performs collection services for Cavalry SPV I, LLC (Hereinafter "Plaintiff"), and am a qualified witness. I am a competent person over eighteen years of age. Based on my review of the account records maintained on Plaintiff's behalf, I have personal knowledge and make the statements herein. Plaintiff is the current owner of, and/or successor to, the obligation sued upon, and was assigned all the rights, title and interest to Defendant's CITIBANK, N.A. account, ending in XXXXXXXXXXXXX5117 (hereinafter, the "Account"). I have access to and have reviewed the records pertaining to the Account and am authorized to make this declaration on Plaintiff's behalf.

2. Plaintiff purchases portfolios of delinquent accounts from either the original creditor or a subsequent purchaser of the account. As part of its operations, CPS, on behalf of Plaintiff, operates and maintains computer systems, into which CPS, on behalf of Plaintiff, integrates electronic records and information received from the seller.

1 3. I am familiar with the manner and method by which CPS, on behalf of Plaintiff,
2 creates and maintains its normal documents and records. The records are kept in the normal
3 course of business. CPS, on behalf of Plaintiff, maintains computerized account records,
4 including the account information that was provided to Plaintiff by CITIBANK, N.A.. The
5 computerized account records include the balance at the time of sale and the date of sale of the
6 subject account. The records are kept in the ordinary course of business by representatives of
7 CPS, on behalf of Plaintiff, who are charged with the duty to accurately record any business act,
8 condition or event on the computer with entries made at or near the time of any such occurrence

9 4. On or about July 21, 2023, Plaintiff became the successor in interest to this
10 Account. CPS on behalf of Plaintiff acquired and incorporated the attached account records into
11 its business records, which are not modified or altered, as a result of Plaintiff's purchase of the
12 Account. These records are kept in the regular course of business on behalf of Plaintiff, and
13 along with the electronic records provided at purchase, are business records maintained by CPS
14 on behalf of Plaintiff for this Account.

15 5. Federal law required the original creditor to furnish Defendant with periodic
16 statements.

17 6. The accuracy of such records is relied upon by Plaintiff in purchasing and by CPS
18 on behalf of Plaintiff in collecting this Account. These records are relied upon in Plaintiff's and
19 CPS's regular course of business.

20 7. This Account was purchased on or after January 1, 2014

21 8. In accordance with California Civil Code section 1788.58(a)(3-8), CPS records
22 maintained on behalf of Plaintiff show the following relevant information concerning the
23 Account.

- 24 a. Plaintiff is the sole owner of the Account.
- 25 b. The Account was opened on May 28, 2022 and charged off on June 13, 2023 with
26 a balance of \$7,591.45
- 27 c. CPS records maintained on behalf of Plaintiff show that the balance of \$7,591.45
28 remains due and owing as of February 2, 2024. Plaintiff is not seeking to recover
any post-charge off interest and/or fees that may have been imposed by the charge
off creditor or subsequent purchasers of the debt and is seeking to recover only

1 that portion of the charge off balance that remains due and owing as of February
2 2, 2024.

- 3 d. The last payment posted to the Account on October 31, 2022.
- 4 e. The charge-off creditor name and address at the time of charge off: CITIBANK,
5 N.A. PO BOX 78019 PHOENIX AZ 85062-8019.
- 6 f. The charge-off Account number associated with the debt at time of charge off was
7 Account No. ending in XXXXXXXXXXXXX5117.
- 8 g. Defendant's name and last known address as it appeared in the charge off
9 creditor's records: AGUSTIN GUEVARA 1228 N BERENDO ST APT D, LOS
10 ANGELES, CA 90029-1641.
- 11 h. The names and addresses of all persons or entities that purchased the debt after
12 charge off, including the plaintiff debt buyer, are as follows:
- 13 i. CAVALRY SPV I, LLC, 1 American Lane Suite 220, Greenwich, CT 06831.
14 Prior to January 1, 2022, the address for CAVALRY SPV I, LLC was: 500
Summit Lake Drive, Suite 400, Valhalla, NY 10595.

15 9. CPS records maintained on behalf of Plaintiff state that Plaintiff, CPS or its
16 agents made demand for payment of the balance herein prior to making this declaration and
17 Defendant(s) failed to make full payment of the amount owed on the Account.

18 10. Attached hereto as Exhibits A, B, and C are the account records I have reviewed
19 in executing the declaration that relate to the Account and/or payment(s) received.

20 Exhibit A. Seller Data document and Chain of Title - establishing the facts
21 required under Civil Code sections 1788.58(a)(3), (a)(7), and (a)(8).

22 Exhibit B. Account Statements and/or Account records including, but not limited
23 to, the most recent monthly statement recording a purchase transaction, last payment, or
24 balance transfer - establishing the fact required under Civil Code section 1788.52(b) and
25 1788.58(a)(5).

26 Exhibit C. Account Statement - establishing the facts required under Civil Code
27 sections 1788.58(a)(4), and (a)(6).

28 11. The documents attached hereto are true and correct copies of documents provided
to CPS on behalf of Plaintiff, by the original creditor, being a reproduction of the records on file
on behalf of Plaintiff based upon my review, except to the extent that confidential and privileged

1 information and/or personal identifying information is omitted or redacted as required by local
2 rules, and applicable state and federal laws.

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DECLARATION IN SUPPORT OF APPLICATION FOR ENTRY OF DEFAULT JUDGMENT (CIVIL CODE § 1788.60(a))

1 12. If called upon to testify as a witness thereon, I could and would competently
2 testify as to all the facts stated herein.

3 I declare under penalty of perjury under the laws of the State of California that the foregoing is
4 true and correct.

5 Executed this 8 day of February, ²⁰²⁴ at Greenwich, CT.

6
7
8 Signature: 

9
10 By: Harold Canela

11
12
13 Title: Legal administrator

EXHIBIT A

BILL OF SALE AND ASSIGNMENT
Costco Fresh Flow Accounts

THIS BILL OF SALE AND ASSIGNMENT dated July 21, 2023, is by Citibank, N.A., a national banking association organized under the laws of the United States, located at 5800 South Corporate Place, Sioux Falls, SD 57108 (the "Bank") to Cavalry SPV I, LLC, organized under the laws of Delaware, with its headquarters/principal place of business at 1 American Lane, Suite 220, Greenwich, CT 06831 ("Buyer").

For value received and subject to the terms and conditions of the Master Purchase and Sale Agreement dated December 29, 2022 and Addendum No. 1 dated December 29, 2022, between Buyer and the Bank (the "Agreement"), the Bank does hereby transfer, sell, assign, convey, grant, bargain, set over and deliver to Buyer, and to Buyer's successors and assigns, the Accounts described in Exhibit 1 to the Addendum and the final electronic file.

Citibank, N.A.

By: Brandy Reardon
(Signature)

Name: Brandy Reardon

Title: Authorized Party

Exhibit 1

The individual Accounts transferred are described in the final electronic file and delivered by the Bank to Buyer, the same deemed attached hereto by this reference.

Lot	Sale ID	# of Accounts	Sale Balance	Cut-Off Date
Costco Fresh	071323CV1CC1FM			7/13/2023

Purchase Date:7/21/2023
1271

Data Excerpt from Exhibit 1**

Field Name	Data Provided
ACCOUNT NUMBER	[REDACTED] 5117
SALE AMOUNT	\$7,591.45
ACCOUNT OPEN DATE	28-May-22
CHARGE OFF DATE	13-Jun-23
LAST PAYMENT DATE	31-Oct-22
CONSUMER FIRST AND MIDDLE NAME	AGUSTIN
CONSUMER LAST NAME	GUEVARA
CONSUMER RESIDENCE ADDRESS 1	1228 N BERENDO ST
CONSUMER RESIDENCE ADDRESS 2	APT D
CONSUMER RESIDENCE CITY	LOS ANGELES
CONSUMER STATE	CA
CONSUMER ZIP CODE	900291641
CONSUMER SSN OR SIN*	[REDACTED]

*Data displayed has been redacted for consumer privacy

**The data contained in this document was extracted from the electronic records transmitted by the seller concerning the referenced account

EXHIBIT B

Costco Anywhere Visa® Card by Citi



AGUSTIN GUEVARA

Member Since 2022 Account number ending in: 5117

Billing Period: 10/14/22-11/11/22

www.citicards.com

Customer Service 1-855-378-6467

TTY: 711

PO Box 790046 ST. LOUIS, MO 63179-0046

NOVEMBER STATEMENT

Minimum payment due: **\$166.49**
New balance as of 11/11/22: **\$6,544.85**
Payment due date: **12/09/22**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum payment warning: If you make only the minimum payment each period, you will pay more in interest, and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on the statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	17 years	\$15,089
\$240	3 years	\$8,640 (Savings=\$6,449)

For information about credit counseling services, call 1-877-337-8187.

Account Summary

Previous balance \$7,531.49
Payments -\$1,681.49
Credits -\$0.00
Purchases +\$593.36
Cash advances +\$0.00
Fees +\$0.00
Interest +\$101.49

New balance \$6,544.85

Credit Limit

Credit Limit \$7,140

Includes \$0.00 cash advance limit

Available Credit Limit \$595

Costco Cash Rewards Summary

as of 11/11/22

\$167.99

» See page 3 for more information about your rewards



For Payments, send check to: Citi Cards, PO BOX 78019, Phoenix, AZ, 85062-8019

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due **\$166.49**

New balance **\$6,544.85**

Payment due date **12/09/22**

Amount enclosed:

Account number ending in 5117

Please make check payable to Citi Cards.

000000 NC 00 A 0

AGUSTIN GUEVARA
1228 N BERENDO ST
APT D
LOS ANGELES CA 90029-1641

Citi Cards
PO BOX 78019
Phoenix, AZ 85062-8019

AGUSTIN GUEVARA

TTY:711

CARDHOLDER SUMMARY

AGUSTIN GUEVARA

Card ending in 5117

New Charges

\$593.36

ACCOUNT SUMMARY

Sale Date	Post Date	Description	Amount
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Payments, Credits and Adjustments

10/15		ONLINE PAYMENT, THANK YOU	-\$150.00
10/15		ONLINE PAYMENT, THANK YOU	-\$531.49
10/29		ONLINE PAYMENT, THANK YOU	-\$1,000.00

AGUSTIN GUEVARA**Standard Purchases**

10/15	10/15	STOOPS - INDIANAPOLIS	INDIANAPOLIS IN	\$100.78
10/25	10/25	PARIS FUEL 24 00001016	PARIS IL	\$140.00
11/02	11/02	MAVERIK #387	WINSLOW AZ	\$55.00
11/04	11/04	COSTCO GAS #0428	ALHAMBRA CA	\$60.00
11/04	11/04	COSTCO WHSE #0428	ALHAMBRA CA	\$237.58

Fees Charged

TOTAL FEES FOR THIS PERIOD	\$0.00
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Interest Charged

11/11	INTEREST CHARGED TO STANDARD PURCH	\$101.49
TOTAL INTEREST FOR THIS PERIOD	\$101.49	

2022 totals year-to-date

Total fees charged in 2022	\$0.00
Total interest charged in 2022	\$287.92

Interest charge calculation

Days in billing cycle: 29

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	18.99% (V)	\$6,726.10 (D)	\$101.49
ADVANCES			
Standard Adv	28.99% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages**Important changes are coming to some of your Card Benefits.**

Effective January 22, 2023, Extended Warranty coverage will be discontinued and will no longer be provided for purchases made on or after that date.

Coverage for purchases made before that date will continue to be available in accordance with the current benefit terms. For additional information on your remaining benefits, please visit citi.com/Costco or call 1-855-378-6467. For TTY, we accept 711 or other Relay Service.

Please be sure to pay on time. If you submit your payment by mail, we suggest you mail it no later than 12/02/2022 to allow enough time for regular mail to reach us.

Costco Cash Rewards Summary**Total Costco Cash Rewards Balance:****\$167.99****Costco Cash Rewards Summary**

Costco Cash Rewards balance as of last statement	+ \$152.03
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Earned this period	+ \$15.96
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Total Costco Cash Rewards Balance**Year To Date : \$167.99****Costco Cash Rewards Earned This Period**

4% on eligible gas worldwide, including gas at Costco ¹	+ \$10.20
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3% on restaurants	+ \$0.00
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3% on eligible travel worldwide	+ \$0.00
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2% on Costco and Costco.com	+ \$4.75
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1% on all other purchases	+ \$1.01
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Total Earned:	\$15.96
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» Visit citi.com/Costco for more information

¹ Up to \$7,000 per year in purchases, then 1% cash back

www.citicards.com

Customer Service 1-855-378-6467
TTY:711

Page 3 of 3

AGUSTIN GUEVARA

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EXHIBIT C

Costco Anywhere Visa® Card by Citi



AGUSTIN GUEVARA

Member Since 2022 Account number ending in: 5117

Billing Period: 05/12/23-06/13/23

www.citicards.com

Customer Service 1-855-378-6467

TTY: 711

PO Box 790046 ST. LOUIS, MO 63179-0046

JUNE STATEMENT

Minimum payment due: **\$7,591.45**

New balance as of 06/13/23: **\$7,591.45**

Payment due date: **06/13/23**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum payment warning: If you make only the minimum payment each period, you will pay more in interest, and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on the statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 months	\$7,591

For information about credit counseling services, call 1-877-337-8188.

Account Summary

Previous balance	\$7,453.84
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$137.61

New balance **\$7,591.45**

Credit Limit

Credit Limit **\$7,140**

Includes \$0.00 cash advance limit

For Payments, send check to: Citi Cards, PO BOX 78019, Phoenix, AZ, 85062-8019

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due **\$7,591.45**

New balance **\$7,591.45**

Payment due date **06/13/23**

Amount enclosed:

Account number ending in 5117

Please make check payable to Citi Cards.

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AGUSTIN GUEVARA
1228 N BERENDO ST
APT D
LOS ANGELES CA 90029-1641

Citi Cards
PO BOX 78019
Phoenix, AZ 85062-8019

AGUSTIN GUEVARA

TTY:711

CARDHOLDER SUMMARY

AGUSTIN GUEVARA

Card ending in 5117

New Charges

\$0.00

ACCOUNT SUMMARY

Sale Date	Post Date	Description	Amount
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AGUSTIN GUEVARA

No Activity

Fees Charged

TOTAL FEES FOR THIS PERIOD \$0.00

Interest Charged

06/13 INTEREST CHARGED TO STANDARD PURCH \$137.61

TOTAL INTEREST FOR THIS PERIOD \$137.61

2023 totals year-to-date

Total fees charged in 2023 \$200.00

Total interest charged in 2023 \$707.75

Interest charge calculation

Days in billing cycle: 33

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	20.24% (V)	\$7,520.35 (D)	\$137.61
ADVANCES			
Standard Adv	29.99% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment was credited as of the date of receipt, but will not be reflected until your next statement.

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